

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lauren Kerstein	Team: Squad #07	CCRB Case #: 201407673	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/27/2014 5:45 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/27/2015	Precinct: 69		
Date/Time CV Reported Tue, 07/22/2014 11:22 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/29/2014 2:33 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Emrah Ates	00257	942967	NARCBBN
2. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. CPT Fernando Guimaraes	00000	915848	NARCBBN
2. SGT Adan Munoz	01313	935372	NARCBBN
3. POM Juner Cevallos	31208	945897	NARCBBN
4. DT3 Joel Polichron	04640	933192	NARCBBN
5. DT3 Evangelos Dimitrakakis	01793	932554	NARCBBN
6. DT3 Charles Ingrassia	1149	938694	NARCBBN
7. DT3 Sophia Carson	2361	941946	NARCBBN
8. DT3 Gabriel Nacelewicz	06511	942255	NARCBBN
9. POM Sean Gillespie	19384	947029	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Emrah Ates	Abuse: Det. Emrah Ates entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . DT3 Emrah Ates	Abuse: Det. Emrah Ates threatened § 87(2)(b) with the use of force.	B . Unsubstantiated
C . An officer	Force: An officer used physical force against § 87(2)(b)	C . Alleged Victim Uncooperative
D . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	D . Alleged Victim Uncooperative

Case Summary

On June 27, 2014, at approximately 6 p.m., officers executed a search warrant inside § 87(2)(b) in Brooklyn (**Allegation A**) and arrested § 87(2)(b) and § 87(2)(b) the complainant and only victim who provided a verified statement to the investigation, alleged that as Det. Ates entered the apartment, he pointed his gun at her and stated, “I’ll kill you bitch, don’t move” (**Allegation B**) § 87(2)(b) was then escorted into the prisoner van followed by § 87(2)(b) who informed her that an officer had punched him in the face (**Allegation C**). In a phone statement with the CCRB (encl. F1), § 87(2)(b) confirmed that he was punched in the face by an officer and added that in response to him informing the officer that he had family in the NYPD, the officer responded, “fuck your family” (**Allegation D**).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

A Notice of Claim inquiry was filed on December 4, 2014, the results of which are still pending. This case was unsuitable for mediation. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the second complaint filed by § 87(2)(b) § 87(2)(b) [redacted]
- Det. Ates has been a member of the service for seven years and has had two allegations substantiated against him, § 87(2)(g) (encl. B1-B2).

Attempts to Contact Civilians

- On September 22, 2014, contact was established with § 87(2)(b) who stated that he did not want to provide a statement for the investigation.
- § 87(2)(b) missed two appointments on September 22, 2014 and November 21, 2014, and was determined not to be incarcerated following a NYC Department of Correction search.
- Between October 22, 2014 and December 10, 2014, five calls and two letters were mailed to § 87(2)(b) with no response. A NYC Department of Correction search was conducted concluding that he is not currently incarcerated.

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(b) alleged that throughout the incident she requested to see the search warrant and she was eventually shown it once they arrived at the precinct.
- In a phone statement to the CCRB on August 27, 2014, and a written statement § 87(2)(b) addressed to IAB, § 87(2)(b) alleged that an officer cursed at § 87(2)(b) and then punched him in the face and threw him and § 87(2)(b) into the prisoner van. § 87(2)(b) did not repeat these allegations in her in-person CCRB statement and § 87(2)(b) and § 87(2)(b) did not participate in the investigation.

Explanation of Subject Officer Identification

- Det. Ates was the officer who requested the search warrant, § 87(2)(g) [REDACTED] Det. Ates acknowledged interacting with § 87(2)(b) [REDACTED] and generally matches the physical description she provided of the subject officer who uttered the threat of force (encl. E5). Furthermore, PO Cevallos who entered behind Det. Ates stated that he and Det. Ates were the only officers who interacted with § 87(2)(b) [REDACTED] inside the apartment and PO Cevallos does not match the physical description of the subject officer.
- § 87(2)(b) [REDACTED] did not provide a physical description of the officer who punched him in the face and made the discourteous statement to him. § 87(2)(g) [REDACTED]

Allegation A: Det. Emrah Ates entered and searched § 87(2)(b) [REDACTED] in Brooklyn.

It is undisputed that Det. Ates and the rest of his tactical team entered and searched § 87(2)(b) [REDACTED] in Brooklyn.

Search warrant § 87(2)(b) [REDACTED], issued by § 87(2)(b) [REDACTED] for the location, authorized the officers to enter and search the location to recover crack/cocaine, crack/cocaine packaging, evidence of drug trafficking, and any records of ownership pertaining to the location (encl. L4-L6).

Officers who have obtained a judge-issued search warrant can enter the private residence listed on the search warrant, detain all perpetrators and seize contraband. Patrol Guide, 212-105 (encl. A1-A6).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B: Det. Emrah Ates threatened § 87(2)(b) [REDACTED] with the use of force.

§ 87(2)(b) [REDACTED] alleged that upon entering her bedroom, Det. Ates stated, “I’ll kill you bitch, don’t move.”

Det. Ates denied making the statement and, PO Cevallos, who was directly behind Det. Ates at the time also denied that he made the statement.

§ 87(2)(g) [REDACTED]
[REDACTED]. It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C: An officer used physical force against § 87(2)(b) [REDACTED]

Allegation D: An officer spoke discourteously to § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED] alleged that an officer punched him in the face and that another stated, “fuck your family.” § 87(2)(b) [REDACTED] did not witness either of the allegations occur.

§ 87(2)(g) [REDACTED]
[REDACTED], it is recommended that **Allegations C and D** be closed as **victim uncooperative**.

Pod: ____7____

Investigator: _____

	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date